

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER NO. 96-028

WASTE DISCHARGE REQUIREMENTS
FOR
ROBINSON/MC CLORY PROPERTIES
EL DORADO MOBILE HOME PARK
WASTEWATER TREATMENT AND DISPOSAL FACILITY
KINGS COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter Board) finds that:

1. Robinson/McClory Properties (hereafter, Discharger), a California general partnership of Leigh Robinson and Oliver McClory, submitted a Report of Waste Discharge (RWD), dated 16 September 1994 for a change in method of disposal and an increase in the quantity of discharge of domestic wastewater from the El Dorado Mobile Home Park (MHP) to its wastewater treatment facility (WWTF). The Discharger owns both the MHP and WWTF (Assessor's Parcel Nos. 004-261-035 and 004-261-036). On 25 September 1995, the Board received a technical report entitled *Geotechnical Engineering Investigation, Proposed Evaporation/Percolation Ponds, El Dorado Mobile Home Park, Lemoore, California* (Geotechnical Report), prepared by Twining Laboratories Inc. (Twining), and plans and specifications prepared by Tolladay, Fremming & Parson (TFP), for the design of evaporation/percolation ponds (disposal ponds). In addition, the Board received an operation and maintenance (O&M) manual prepared by TFP for the WWTF, which includes the proposed disposal ponds, on 4 October 1995.
2. Waste Discharge Requirements Order No. 77-22, adopted by the Board on 14 March 1977, prescribes requirements for a maximum daily discharge of 0.15 million gallons per day (mgd) from a package extended aeration treatment plant (ATP) to a mounded leachfield disposal system. The maximum daily discharge is based on the design capacity of the mounded leachfield disposal system, which is no longer functional. The monthly average daily discharge from the ATP has been measured at 0.023 mgd, which violates the maximum daily discharge limit contained in Order No. 77-22.
3. Order No. 77-22 is neither adequate nor consistent with current plans and policies of the Board because of an increase in the quantity of discharge and a proposed change in method of disposal.
4. The MHP consists of 108 dwelling units and provides housing to approximately 296 occupants.

WASTE DISCHARGE REQUIREMENTS
ROBINSON/MC CLORY PROPERTIES
EL DORADO MOBILE HOME PARK WWTF
KINGS COUNTY

-2-

5. The WWTF consists of a collection system with 12 septic tanks; an ATP with a maximum design flow capacity of 0.025 mgd; the mounded leachfield, which has been dysfunctional since 1992; disinfection facilities; an emergency disposal pond; and a pasture disposal area. The WWTF, including the pasture disposal area, is fenced to preclude access to the general public.
6. The septic tanks have individual pumps that tie to a common force main which connects to the ATP. Septage from the septic tanks and sludge from the ATP are pumped out by a licensed liquid waste hauler, as needed.
7. Treated wastewater bypasses the dysfunctional mounded leachfield and flows by gravity to the emergency storage pond where it is chlorinated prior to discharge to the pasture disposal area for final disposal. The monthly self-monitoring reports indicate that the Discharger is frequently in violation of effluent coliform limits contained in Order No. 77-22.
8. The MHP is in the southwest corner of Section 28, T18S, R20E, MDB&M, west of Highway 41 (19 1/2 Avenue), about two miles northwest of the City of Lemoore, in Kings County. Surface water drainage is to the Kings River by sheet flow, as shown in Attachment A, which is attached hereto and part of this Order by reference. The site lies within the Hanford-Lemoore Hydrologic Area (No. 551.90), as depicted on interagency hydrologic maps prepared by the Department of Water Resources in August 1986.
9. The prevalent wind direction is to the northwest.
10. The Discharger proposes to replace the existing mounded leachfield with three disposal ponds constructed on 1 foot of fill material, so as to maintain a minimum separation of 3 feet from the pond bottoms to the historical high groundwater elevation. The pond embankments will have a horizontal to vertical slope of 2:1, and a height of 4 feet. The outside embankments will be 20 feet wide at the top and the internal embankments (between ponds) will be 12 feet wide at the top. Each pond will have a surface area of 0.26 acres and a capacity of 0.170 million gallons, with two feet of freeboard. The Discharger proposes to rotate the primary disposal pond every three months. A two-foot high dyke will be constructed around the disposal ponds to protect the immediate area from flooding if a pond embankment fails. The WWTF layout is shown in Attachment B, which is hereafter part of the Order.
11. The Geotechnical Report determined that the site is suitable for construction of the proposed disposal ponds with regard to support and stability of embankments and infiltration of water, provided that recommendations specified in the report are adhered to by the Discharger.

WASTE DISCHARGE REQUIREMENTS
ROBINSON/MCCLORY PROPERTIES
EL DORADO MOBILE HOME PARK WWTF
KINGS COUNTY

-3-

12. Soils consist of silty sand (SM) to a depth of about 24 inches below ground surface (bgs); sandy silts (ML) between 2 and 4 feet bgs; lean clays (CL) between 4 to 9 feet bgs; and poorly graded sands (SM & SP) between 9 and 16.5 feet bgs.
13. Two percolation tests and two soil infiltration tests were taken at the site. The percolation tests were taken at 27 and 11.5 inches bgs and the results were determined to be 9 and 27 minutes/inches, respectively. The soil infiltration tests were taken at approximately 300 to 645 feet west of 19 1/2 Avenue and the results were determined to be 0.2 and 2.0 feet/day, respectively. The tests indicate that the soils have moderate to rapid infiltrative ability.
14. The Geotechnical Report states that groundwater mounding will occur and will reduce soil infiltration rates to 0.1 feet/day or less. Near surface soils are significantly more permeable than underlying deeper soil layers and water will collect or perch on the lower impermeable layer.
15. The San Andreas earthquake fault is 50 miles from the site. According to the Geotechnical Report, a liquefaction analysis determined that an upper bound earthquake can liquefy silty and poorly graded sands at the site and cause the proposed pond embankments to be breached. The Geotechnical report also indicates that there is no history of liquefaction occurring in the immediate area around the proposed disposal ponds.
16. The Board adopted a Water Quality Control Plan, for the Tulare Lake Basin (5D, hereafter Basin Plan), which contains water quality objectives for all waters of the Basin. These requirements implement the Basin Plan.
17. The beneficial uses of underlying ground water are domestic, industrial, and agricultural supply.
18. Groundwater was encountered at the site at 2 to 3 feet bgs on 26 April 1995 and at 5 to 6 feet bgs on 1 August 1995. According to the Department of Water Resources, unconfined groundwater near the El Dorado MHP has specific electrical conductivity at 25°C (EC) of 1680 $\mu\text{mhos/cm}$. The EC may not be representative of this area; however, no site specific water quality data is available at this time.
19. Source water from the MHP is supplied by an on-site domestic ground water well that pumps water from an approximate depth of 220 feet. The well is situated near the MHP front office, away from the WWTF. The quality of the source water for the MHP is not

WASTE DISCHARGE REQUIREMENTS
ROBINSON/MC CLORY PROPERTIES
EL DORADO MOBILE HOME PARK WWTF
KINGS COUNTY

-4-

- known. However, the City of Lemoore obtains its water from four domestic water wells and its quality is good, with electrical conductivity and total dissolved solid concentrations of 350 μ mhos/cm and 220 mg/l, respectively.
20. The beneficial uses of the Kings River are agricultural supply; recreation; esthetic enjoyment; ground water recharge; preservation and enhancement of fish, wildlife, and other aquatic resources.
 21. The Basin Plan requires that each Report of Waste Discharge for a land disposal operation justify why reclamation is not practiced or proposed. The Discharger reports that it cannot use effluent for reclamation because of a lack of demand for reclaimed water.
 22. The permitted discharge is consistent with the antidegradation provisions of State Water Resources Control Resolution No. 68-16. This Order authorizes an increase to the volume of pollutants that have been discharged for some years. The increased discharge has not caused a significant impact on surface waters, depleted limited ground water resources, and is unlikely to cause a significant impact on groundwater quality if it complies with this Order. The increase allows continuation of wastewater utility service necessary to accommodate existing tenants of the MHP, and is thereby considered to be a benefit to the people of the State.
 23. The Kings County Planning Commission adopted Resolution No. 95-06, on the 3 April 1995, which states that the changes to the WWTF are exempt from the provisions of the California Environmental Quality Act (CEQA) in accordance with Title 14, California Code of Regulations (CCR), Section 15302. Said section allows exemption for replacement or reconstruction of existing structures and facilities where the new structures will be on the same site as the structure replaced and will have substantially the same purpose and capacity as the structure replaced.
 24. The Board has notified the Discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for this discharge and has provided them with an opportunity for a public hearing and an opportunity to submit their written views and recommendations.
 25. The Board, in a public meeting, heard and considered all comments pertaining to the discharge.

WASTE DISCHARGE REQUIREMENTS
ROBINSON/MC CLORY PROPERTIES
EL DORADO MOBILE HOME PARK WWTF
KINGS COUNTY

-5-

IT IS HEREBY ORDERED that Order No. 77-22 is rescinded and Robinson/McClory Properties, its partners, its agents, successors, and assigns, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereunder, shall comply with the following:

A. Discharge Prohibitions:

1. Discharge of wastes to surface waters or surface water drainage courses is prohibited.
2. Bypass or overflow of untreated or partially treated waste is prohibited.
3. Discharge of waste classified as 'hazardous' or 'designated', as defined in Sections 2521 (a) and 2522 (a) of Title 23, California Code of Regulations, is prohibited.
4. Effective 1 July 1996, discharge of wastes to the mounded leachfield and the pasture disposal area are prohibited.

B. Discharge Specifications:

1. The disposal ponds shall be constructed as specified in plans and specifications and recommended in the Geotechnical Report.
2. The maximum daily discharge shall not exceed 0.025 mgd.
3. Objectionable odors originating at this WWTF shall not be perceivable beyond the limits of the WWTF.
4. As a means of discerning compliance with Discharge Specification No. B.3 in ponds, the dissolved oxygen content in the upper zone (1 foot) of wastewater in ponds shall not be less than 1.0 mg/l.
5. The WWTF shall be designed, constructed, operated, and maintained to prevent inundation or washout due to floods with a 100-year return frequency.
6. The effluent from the ATP shall not exceed the following limits:

WASTE DISCHARGE REQUIREMENTS
ROBINSON/MC CLORY PROPERTIES
EL DORADO MOBILE HOME PARK WWTF
KINGS COUNTY

-6-

<u>Constituent</u>	<u>Units</u>	<u>Monthly Average</u>	<u>7-day Median</u>	<u>Daily Maximum</u>
BOD ₅ ¹	mg/l	40	—	80
Suspended Solids	mg/l	40	—	80
Settleable Solids	ml/l	0.2	—	0.5
Total Coliform Organisms ²	MPN ³ /100ml	—	23	240

¹ 5-day, 20° Celsius biochemical oxygen demand.

² Applicable when groundwater is within five feet of pond bottoms.

³ Most Probable Number

7. Use of the emergency disposal pond will be limited to emergency events, and the Discharger shall notify the Board 24 hours before each proposed use. Effluent discharged to the emergency disposal pond must comply with the effluent limitations cited in Discharge Specification B.6 except that all discharges to the emergency disposal pond must meet the effluent limits for Total Coliform Organisms.
8. Ponds shall not have a pH less than 6.5 or greater than 9.5.
9. The maximum EC of discharge shall not exceed the weighted average EC of the water source plus 300 μ mhos/cm.
10. Ponds shall be managed to prevent breeding of mosquitos. In particular:
 - a. An erosion control program should assure that small coves and irregularities are not created around the perimeter of the water surface.
 - b. Weeds shall be minimized through control of water depth, harvesting, or herbicides.
 - c. Dead algae, vegetation, and debris shall not accumulate on the water surface.
11. Public contact with wastewater shall be precluded through such means as fences, signs, and other acceptable alternatives.
12. Ponds shall have sufficient capacity to accommodate allowable wastewater flow and design seasonal precipitation and ancillary inflow and infiltration. Design seasonal precipitation shall be based on total annual precipitation using a return

WASTE DISCHARGE REQUIREMENTS
ROBINSON/MC CLORY PROPERTIES
EL DORADO MOBILE HOME PARK WWTF
KINGS COUNTY

-7-

period of 100 years, distributed monthly in accordance with historical rainfall patterns. Freeboard shall never be less than two feet (measured vertically).

13. On or about 1 October of each year, available pond storage capacity shall at least equal the volume necessary to comply with Discharge Specification B.12.

C. Sludge Disposal Specifications:

1. Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed of in a manner that is consistent with Title 23, California Code of Regulations, Section 2510, et seq. and approved by the Executive Officer.
2. Any proposed change in sludge use or disposal practice shall be reported to the Executive Officer at least 90 days in advance of the change.
3. Use and disposal of sewage sludge shall comply with existing federal and state laws and regulations.

D. Ground Water Limitations:

The discharge, in combination with other sources, shall not cause underlying ground water to:

1. contain waste constituents in concentrations statistically greater than background water quality.
2. Exceed a most probable number of total coliform organisms of 2.2/100 ml.
3. Contain taste or odor-producing substances in concentrations that cause nuisance or adversely affect beneficial uses.

E. Provisions:

1. The Discharger shall comply with Monitoring and Reporting Program No. 96-028, which is part of this Order, and any revisions thereto as ordered by the Executive Officer.
2. The Discharger shall comply with the "Standard Provisions and Reporting Requirements for Waste Discharge Requirements," dated 1 March 1991, which are attached hereto and by reference a part of this Order. This attachment and its individual paragraphs are commonly referenced as "Standard Provision(s)."

WASTE DISCHARGE REQUIREMENTS
ROBINSON/MC CLORY PROPERTIES
EL DORADO MOBILE HOME PARK WWTF
KINGS COUNTY

-8-

3. In the event of any change in control or ownership of land or waste discharge facilities described herein, the Discharger shall notify the succeeding owner or operator of the existence of this Order by letter, a copy of which shall be immediately forwarded to this office.

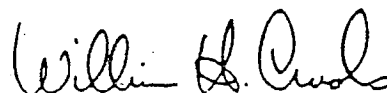
To assume operation under this Order, the succeeding owner or operator must apply in writing to the Executive Officer requesting transfer of the Order. The request must contain the requesting entity's full legal name, the State of incorporation if a corporation, the name and address and telephone number of the persons responsible for contact with the Board, and a statement. The statement shall comply with the signatory paragraph of Standard Provision B.3 and state that the new owner or operator assumes full responsibility for compliance with this Order. Failure to submit the request shall be considered a discharge without requirements, a violation of the California Water Code. Transfer shall be approved or disapproved by the Executive Officer.

4. The Discharger shall use the best practicable cost-effective control technique currently available to comply with this Order.
5. The Discharger must comply with all conditions of this Order, including timely submittal of technical and monitoring reports as directed by the Executive Officer. Violations may result in enforcement action, including Regional Board or court orders requiring corrective action or imposing civil monetary liability, or in revision or rescission of this Order.
6. Effective 1 July 1996, the Discharger shall complete the construction of the proposed disposal ponds and provide a certification of completion signed by a California registered civil engineer. The certification shall indicate whether the disposal ponds were constructed as described in plans and specifications and as recommended in the Geotechnical Report.
7. A copy of this Order shall be kept at the El Dorado Mobile Home Park and at the home or office of the wastewater treatment operator for use as reference by operating personnel. Operating personnel shall be familiar with the Order.
8. The Board will review this Order periodically and will revise requirements when necessary.

WASTE DISCHARGE REQUIREMENTS
ROBINSON/MC CLORY PROPERTIES
EL DORADO MOBILE HOME PARK WWTF
KINGS COUNTY

-9-

I, WILLIAM H. CROOKS, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 26 January 1996.



WILLIAM H. CROOKS, Executive Officer

MHS:mhs/fmc

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

MONITORING AND REPORTING PROGRAM NO. 96-028

FOR

ROBINSON/MC CLORY PROPERTIES
EL DORADO MOBILE HOME PARK
WASTEWATER TREATMENT FACILITY
KINGS COUNTY

Specific sample station locations shall be established with concurrence of the Board's staff, and a description of the stations shall be submitted to Board and attached to this Program.

EFFLUENT MONITORING

Except for flow, which may be measured at the ATP, effluent samples shall be collected just prior to discharge to the disposal ponds. Effluent samples should be representative of the volume and nature of the discharge. Time of collection of a grab sample shall be recorded. Effluent monitoring shall include at least the following:

<u>Constituents</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Sampling Frequency¹</u>
Flow	mgd	Metered	max daily NOT known Continuous < 0.025 MGID
Total Coliform Organisms ²	MPN ³ /100 ml	Grab	Weekly 23/240
BOD ₅ ⁴	mg/l	Grab	Monthly 1 day 40/80
Total Suspended Solids	mg/l	Grab	Monthly 40/80
Settleable Solids	ml/l	Grab	Monthly 0.2/0.5
pH	pH units	Grab	Monthly 6.5-9.5
EC	μmhos/cm	Grab	Quarterly (EC _s + 300)

¹ If results of monitoring a pollutant appear to violate effluent limitations, but monitoring frequency is not sufficient to validate violation (e.g., the monthly average for BOD), or indicate a violation and potential upset of the treatment process (e.g., less than minimum D.O.), the frequency of sampling shall be increased to confirm the magnitude and duration of violation, if any, and aid in identification and resolution of the problem.

² Applicable when ground water is within five feet of pond bottoms.

³ Most Probable Number

⁴ Five-day, 20° Celsius biochemical oxygen demand.

MONITORING AND REPORTING PROGRAM
ROBINSON/MC CLORY PROPERTIES
EL DORADO MOBILE HOME PARK WWTF
KINGS COUNTY

-2-

POND MONITORING

The freeboard shall be monitored on the evaporation/percolation ponds in use to the nearest tenth foot. Pond water monitoring shall include the following:

<u>Constituent</u>	<u>Unit</u>	<u>Type of Sample</u>	<u>Frequency</u>
Freeboard	feet	Observation	Weekly > 2 ft.
Dissolved Oxygen ¹	mg/l	Grab	Weekly > 1.0

¹ Samples shall be collected at a depth of one foot, opposite the inlet, and analyzed for dissolved oxygen. Samples shall be collected between 0800 and 0900 hours.

Permanent markers shall be placed in the pond with calibration indicating the water level at design capacity and available operational freeboard.

In addition, the Discharger shall inspect the condition of the ponds once per week and write visual observation in a bound log book. Notations shall include observations of whether weeds are developing in the water or along the bank, and their location; whether dead algae, vegetation, scum, or debris are accumulating on the pond surface and their location; whether burrowing animals or insects are present; and the color of the pond (e.g., dark sparkling green, dull green, yellow, grey, tan, brown, etc.). A copy of the entries made in the log during each month shall be submitted along with the monitoring report the following month. Where the O&M manual indicates remedial action is necessary, the Discharger shall briefly explain in the transmittal what action has been taken or is scheduled to be taken.

WATER SUPPLY MONITORING

A sampling station shall be established where a representative sample of the water supply can be obtained. Water supply monitoring shall include at least the following:

<u>Constituents</u>	<u>Units</u>	<u>Sampling Frequency</u>
EC	μ mhos/cm	Quarterly

MONITORING AND REPORTING PROGRAM
ROBINSON/MC CLORY PROPERTIES
EL DORADO MOBILE HOME PARK WWTF
KINGS COUNTY

-3-

GROUND WATER MONITORING

The Discharger shall submit a work plan by (60 days after date of adoption) for a ground water monitoring network with a schedule for implementation to monitor ground water upgradient and downgradient of the proposed disposal ponds. The monitoring network shall consist of one or more background monitoring wells and sufficient downgradient wells to determine flow direction and gradient, and to monitor disposal areas. All well locations and construction features are subject to approval by the Executive Officer and must be sufficient to monitor potential impacts of the disposal operation on the uppermost ground water aquifer. Within 30 days following approval of the workplan by the Executive Officer, the Discharger shall implement the proposed ground water monitoring well network. Water samples shall be collected from the wells and analyzed as follows:

<u>Constituents</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Sampling Frequency</u>
Depth/elevation ¹	feet ²	Grab	Weekly
Total Coliform Organisms ³	MPN ⁴ /100 ml	Grab	Monthly
EC	μ mhos/cm	Grab	Quarterly
Nitrate Nitrogen	mg/l	Grab	Quarterly

¹ Relative to Mean Sea Level

² To the nearest tenth of a foot

³ Monitoring is required when ground water is within 5 feet of disposal pond bottoms.

⁴ Most Probable Number

REPORTING

Monthly monitoring reports shall be submitted to the Board by the 28th day of the following month.

In reporting the monitoring data, the Discharger shall arrange the data in tabular form so that the date, the constituents, and the concentrations are readily discernible. The data shall be summarized in such a manner that illustrates clearly whether the Discharger complies with waste discharge requirements, including calculation of all averages, etc.

If the Discharger monitors any pollutant at the locations designated herein more frequently than is required by this Order, the results of such monitoring shall be included in the discharge monitoring report.

**MONITORING AND REPORTING PROGRAM
ROBINSON/MC CLORY PROPERTIES
EL DORADO MOBILE HOME PARK WWTF
KINGS COUNTY**

The Discharger may also be requested to submit an annual report to the Board with tabular and graphical summaries of the monitoring data obtained during the previous year. Any such request shall be made in writing. The report shall discuss the corrective actions taken and planned to bring the discharge into full compliance with the waste discharge requirements:

By 31 January of each year, the Discharger shall submit a written report to the Executive Officer containing the following:

- a. The names, titles, certificate grade (if any) and general responsibilities of persons operating and maintaining the wastewater treatment facility.
- b. The names and telephone numbers of persons to contact regarding the plant for emergency and routine situations.
- c. A certified statement of when the flow meter and other monitoring instruments and devices were last calibrated, including identification of who did the calibration (Standard Provision C.4).
- d. A statement whether the current operation and maintenance manual, and contingency plan, reflect the wastewater treatment facility as currently constructed and operated, and the dates when these documents were last reviewed for adequacy.
- e. The total quantity of septage and sludge disposed of during the previous year and either the ultimate disposal site(s) or the identity of the licensed liquid waste hauler(s).

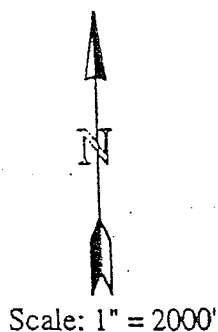
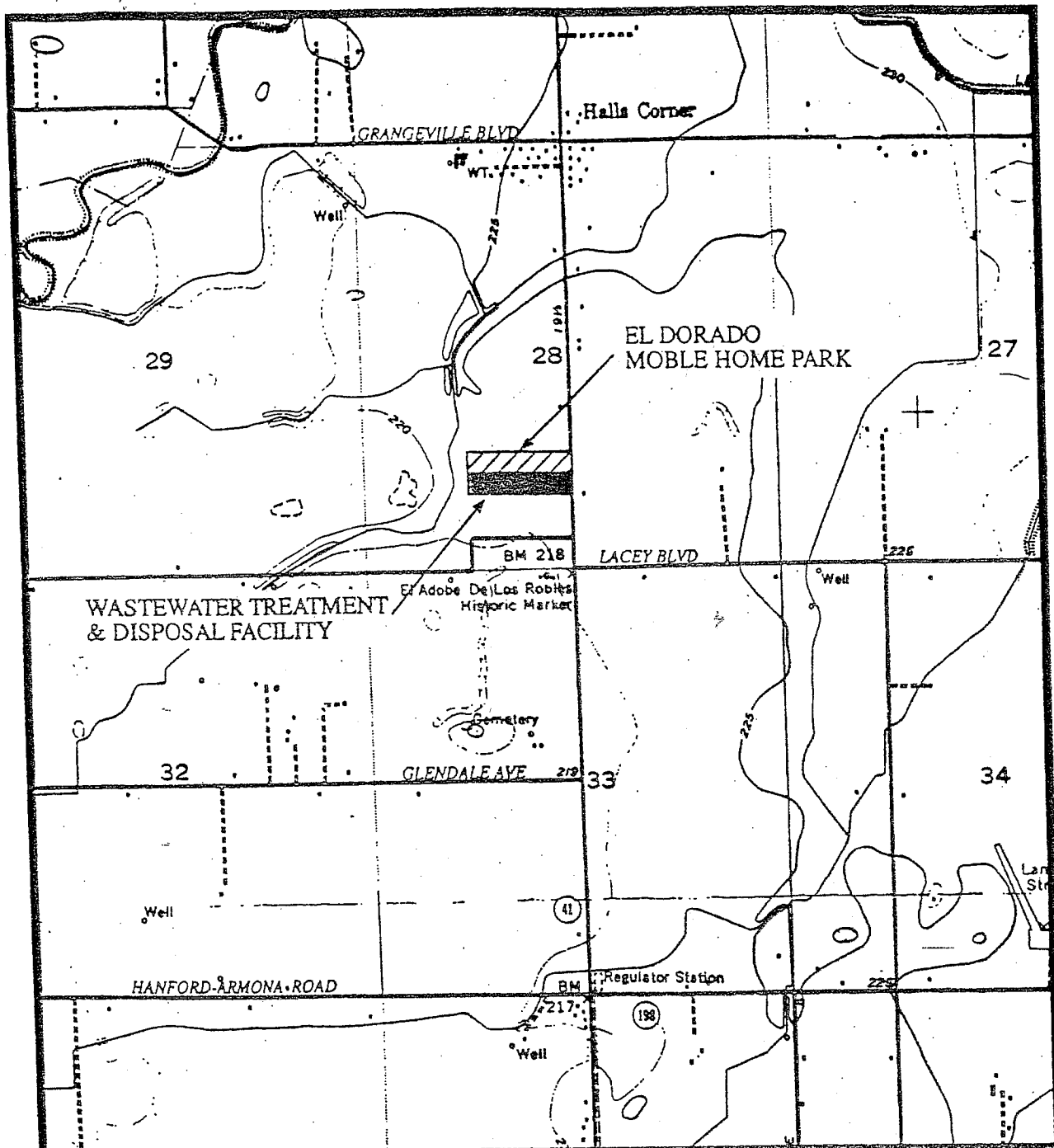
All reports submitted in response to this Order shall comply with the signatory requirements in Standard Provision B.3.

The Discharger shall implement the above monitoring program on the first day of the month following adoption of this Order.

Ordered By: William H. Crooks
WILLIAM H. CROOKS, Executive Officer

26 January 1996
(Date)

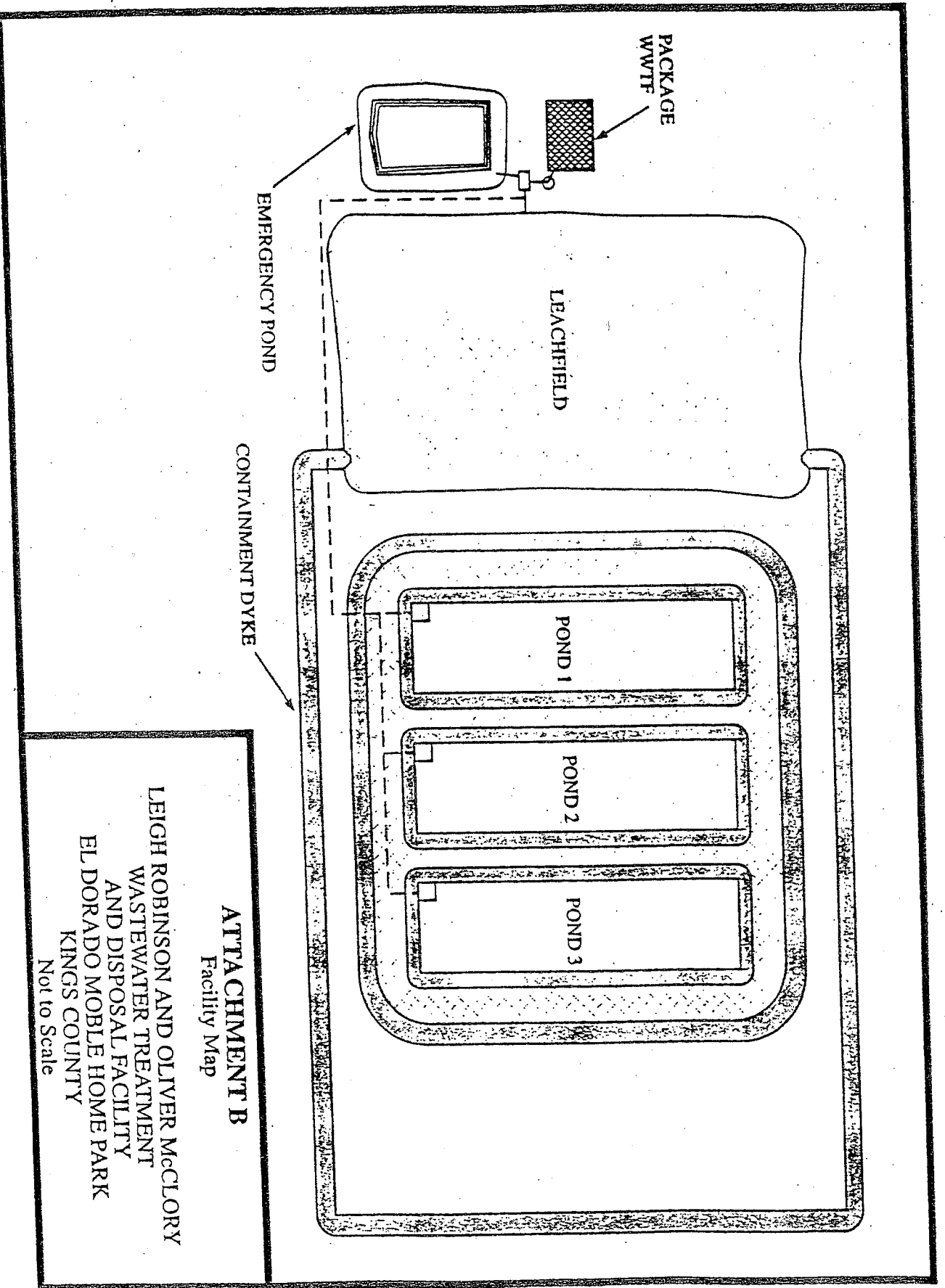
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ATTACHMENT A Vicinity Map

LEIGH ROBINSON AND OLIVER McCLORY
EL DORADO MOBILE HOME PARK
WASTEWATER TREATMENT & DISPOSAL FACILITY
KINGS COUNTY

Section 28, T18S, R20E, MDB&M
Lemoore, 7 1/2' USGS Quad, 1954



ATTACHMENT B
Facility Map
LEIGH ROBINSON AND OLIVER McCLORY
WASTEWATER TREATMENT
AND DISPOSAL FACILITY
EL DORADO MOBILE HOME PARK
KINGS COUNTY
Not to Scale

INFORMATION SHEET

ROBINSON/MC CLORY PROPERTIES EL DORADO MOBILE HOME PARK WASTEWATER TREATMENT FACILITY KINGS COUNTY

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The Board received a technical report entitled *Geotechnical Engineering Investigation, Proposed Evaporation/Percolation Ponds, El Dorado Mobile Home Park, Lemoore, California* (Geotechnical Report), for the design of evaporation/percolation ponds (disposal ponds) to replace the existing dysfunctional mounded leachfield.

The WWTF consists of a collection system with 12 septic tanks; an ATP with a maximum design flow capacity of 0.025 mgd; the mounded leachfield, which has been dysfunctional since 1992; disinfection facilities; an emergency disposal pond; and a pasture disposal area. The WWTF, including the pasture disposal area, is fenced to preclude access to the general public. The septic tanks have individual pumps that tie to a common force main which discharge to the ATP. Septage from the septic tanks and sludge from the ATP are pumped out by a licensed liquid waste hauler, as needed.

Treated wastewater bypasses the dysfunctional mounded leachfield and flows by gravity to the emergency storage pond where it is chlorinated prior to discharge to the pasture disposal area for final disposal. The monthly self-monitoring reports indicate that the Discharger is frequently in violation of effluent coliform limits contained in Order No. 77-22.

The Discharger proposes to replace the existing mounded leachfield with three disposal ponds constructed on 1 foot of fill material, so as to maintain a minimum separation of 3 feet from the pond bottoms to the historical high groundwater elevation.

The prevalent wind direction is to the northwest.

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INFORMATION SHEET
ROBINSON/MC CLORY PROPERTIES
EL DORADO MOBILE HOME PARK
WASTEWATER TREATMENT FACILITY
KINGS COUNTY

-2-

The Geotechnical Report states that ground water mounding will occur and will reduce soil infiltration rates to 0.1 feet/day or less. Near surface soils are significantly more permeable than underlying deeper soil layers and water will collect or perch on the lower impermeable layer.

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MHS:mhs/fmc:1/26/96